KAILAS FZE
At Ibom Energy Free Trade Zone Sub-zone within Liberty Oil & Gas Free Trade Zone
At Eastern Obolo
Akwa Ibom Akwa Ibom NIGERIA

KFZE/BISNL/201384/6-2026/GC000047

PURCHASE ORDER

Purchase Order No:	KFZE/BISNL/201384/6-2026/GC000047	Name of Supplier/ Contractor	
Purchase Order Date	25 Jun 2026	**Supplier Name**	BIDCOM INTEGRATED PROJECTS LIMITED
Amendment No.		**Supplier Code**	VEN00021
Amendment Date		Address:	KM 5, REFINERY ROAD, EKPAN, WARRI, DELTA STATE, NIGERIA. WARRI Delta NIGERIA -
Supplier Ref No. / Date		Attention:	
Buyer Name	Idowu Adegboyega Ashamu	Email:	
Buyer Email	idowu.ashamu@energy-mgt.com	Mobile/Telephone Number	

Disclaimer

By accepting this Purchase Order, Contractor agrees to furnish the Goods/Services in full accordance with all conditions set forth herein and/or attachments hereto. This Purchase Order constitutes the entire agreement and only written changes by way of an amendment to this Purchase Order will be legally binding. It is important that Contractor signs and returns the Purchase Order copy within three (3) days of receipt. Failure to return the acceptance does not diminish the responsibilities as set forth herein, but may result in a delay to any payments that may be due and may be cause for termination of this Purchase Order.

Description of Supply	Total Purchase Order Value (NGN)
SUPPLY OF MATERIALS FOR DEPLOYMENT OF LAN INFRASTRUCTURE AT LNG STORAGE AREA OFFICE SPFL AKWA IBOM	3,685,400.00

Total Purchase Order Value (In Words): (NGN) Three Million Six Hundred Eighty Five Thousand Four Hundred Point Zero Only.

Special Terms and Conditions

1. Delivery Term: Delv AT Place - Place OML13 IKO Town Akwa Ibom. Contact: Mr. William Bramwel(09153992536)

2. Delivery Schedule: Material shall be delivered within 1-2 Weeks from the date of receipt of PO

3. Payment Term: As specified in the Order

3.1. Payment to Supplier under this Purchase Order shall be to below mentioned account:
Bank Name: Zenith Bank; Bank Account Number: 1015865365; Beneficiary Account Name: BIDCOM INTEGRATED PROJECTS LIMITED; Swift Code:

4. Inspection: Company shall inspect the services/goods supplied. If the services/goods are not as per the desired specification, same shall be rejected. Contractor shall remedy/replace the rejected services/goods within reasonable time of rejection at his own cost. If the contractor fails to remedy/replace the rejected services/goods, company shall arrange the same from alternative source at contractors cost & risk

5. List of Attached Documents: As specified below the Price Schedule

6. "FREE ZONE STATUS APPLIES."
7. VAT, Duties&Taxes are NOT applicable considering Free Trade Zone purchase for the Authorized Operations (Approved Activity) of FTZ.
8. Total Order Value is based on the item and quantity mentioned in the Price Schedule. However, payment shall be made based on actual quantity received by the company, duly certified by the company authorized representative.
9. Delivery shall be made to - OML13, Billow Guest House, Opposite Iko Primary School, Iko Town, Eastern Obollo LGA, Akwa Ibom State, Nigeria.
10. Delay Damages: The Seller shall pay delay damages at the rate of @1 % of the undelivered portion of the Contract Price for every week of delay and pro-rated for any part of such week, up to a maximum of @ 5% of the undelivered portion of the Contract Price. These delay damages are deemed fair and reasonable, not punitive, representing the Buyer's estimated losses.
11. Supplier can submit the scanned copies of MRR and Incoice to email : ICT.Invoices@bqubeglobal.com and also copy the buyer.

Buyer : Idowu Adegboyega Ashamu	**Authorized Signatory**	**BIDCOM INTEGRATED PROJECTS LIMITED** **Signature** **Title** MANAGING DIRECTOR **Date** 06/07/2026

KFZE/BISNL/201384/6-2026/GC000047

PRICE SCHEDULE

Purchase Order Number :	KFZE/BISNL/201384/6-2026/GC000047	**Purchase Order Date :**	25 Jun 2026
Amendment No :	0	**Amendment Date :**	
Description of Supply :	SUPPLY OF MATERIALS FOR DEPLOYMENT OF LAN INFRASTRUCTURE AT LNG STORAGE AREA OFFICE SPFL AKWA IBOM	**Currency :**	NGN

S. No.	Item Code	Item Descriptions	UOM	Delivery Date	Qty	Unit Price	Ext. Amount
1	6101990399	DISTRIBUTION UNIT,POWER,AP7922B,APC	NOS	31 Jul 2026	1.00	500,000.00	500,000.00
Long Description:		POWER DISTRIBUTION UNIT (PDU),COMPONENT MAKE:APC,COMPONENT PART NUMBER:AP7922B,PLUG CURRENT RATING:32 A,PLUG VOLTAGE RATING:230 V,TYPE:RACK, SWICHED,NUMBER OF RACK UNIT:2U,NUMBER OF POWER SOCKET OUTLET:16,STANDARD:IEC-60502-1					
2	5810010075	RACK,SERVER,STL,600X800X900TO 950MM,18U	NOS	31 Jul 2026	1.00	290,000.00	290,000.00
Long Description:		NETWORK SERVER RACK,MATERIAL:HEAVY-GAUGE STEEL,SIZE:WD 600 X DP 800 X HT 900 TO 950 MM (APPROXIMATELY),FINISH:BLACK POWDER COATED,STRUCTURE:4 X POST (M6 THREADED),FRONT DOOR MATERIAL:TEMPERED GLASS,REAR DOOR MATERIAL:SOLID SHEET STEEL,STANDARD:EIA/IEC (19 IN),MANUFACTURING PROCESS:COLD ROLLED,RACK UNIT SIZE:18U (HEIGHT),STANDARD:ROHS,ADDITIONAL INFORMATION:TOP AND BOTTOM KNOCKOUT PANEL					
3	6203050076	PLATE,FACE,SINGLE,2XRJ45,DINTE K	NOS	31 Jul 2026	50.00	2,000.00	100,000.00
Long Description:		SINGLE FACE PLATE,MATERIAL:PLASTIC,COMPONENT MAKE:DINTEK,COMPONENT PART NUMBER:2XRJ45,COLOUR:WHITE,ADDITIONAL INFORMATION:CAT6 IDEAL FOR ETHERNET CABLE,TYPE:WALL,DUAL PORT					
4	6101580008	PATTRESS BOX	NOS	31 Jul 2026	50.00	400.00	20,000.00
5	6203040093	JACK,KEYSTONE,1305-04069,DINTEK	NOS	31 Jul 2026	50.00	1,500.00	75,000.00
Long Description:		KEYSTONE JACK,MATERIAL:PHOSPHOR BRONZE ALLOY,COMPONENT MAKE:DINTEK,COMPONENT PART NUMBER:1305-04069,TYPE:CAT6 UTP,TERMINAL:WITH 10 MICRO INCH 100 PCT SN ALLOY					
6	6101630004	CONNECTOR,RJ45	PACK	31 Jul 2026	1.00	10,000.00	10,000.00
Long Description:		CONNECTOR,COMPONENT PART NUMBER:RJ45					
7	6101080038	TIE,CABLE,MEDIUM	PACK	31 Jul 2026	1.00	3,000.00	3,000.00
Long Description:		CABLE TIE,SIZE:MEDIUM,ALTERNATIVE PART NAME:TIE WRAP					
8	6102990176	PROTECTOR,SURGE,AVP-1300,BINATONE	NOS	31 Jul 2026	2.00	18,000.00	36,000.00
Long Description:		SURGE PROTECTOR,COMPONENT MAKE:BINATONE,COMPONENT PART NUMBER:AVP-1300,CURRENT RATING:13 A					
9	6203010061	NANOBEAM,NBE-5AC-GEN2,UBIQUITI	NOS	31 Jul 2026	2.00	185,800.00	371,600.00
Long Description:		NANOBEAM,SIZE:189 X 189 X 125 MM (7.44 X 7.44 X 4.92 IN),COMPONENT MAKE:UBIQUITI,COMPONENT PART NUMBER:NBE-5AC-GEN2,GAIN:17 DBI,NETWORKING INTERFACE:2 X 10/100/1000 ETHERNET PORT,POWER CONSUMPTION:8.5 W,VIBRATION TEST:IEC 68-2-6,TEMPERATURE SHOCK TEST:IEC 68-2-14,UV TEST:IEC 68-2-5 AT 40 DEG C (104 DEG F),EQUIVALENT:ETS 300 019-1-4,ESD/EMP PROTECTION:+/- 24 KV (AIR/CONTACT),OPERATING FREQUENCY RANGE:5150 TO 5875 MHZ,MANAGEMENT RADIO RANGE:2412 TO 2472 MHZ,FEATURE:WIFI,WEIGHT:530 GRAM (1.17 LB)					
10	6101990430	TAPE,FLAT,CU,3X25MM,100M/ROLL	ROLL	31 Jul 2026	1.00	950,000.00	950,000.00
Long Description:		FLAT TAPE,MATERIAL:COPPER,SIZE:3 X 25 MM,FORM OF SUPPLY:100 M PER ROLL					

11	6101990390	MAT,EARTH,CU,25XDIA600X600MM	NOS	31 Jul 2026	1.00	35,000.00	35,000.00
Long Description:		EARTH MAT,MATERIAL:COPPER,SIZE:25 X DIA 600 X 600 MM X THK 3 MM					
12	6199010004	CHARCOAL,50KG/BAG	NOS	31 Jul 2026	2.00	10,000.00	20,000.00
Long Description:		CHARCOAL,FORM OF SUPPLY:50 KG PER BAG,ADDITIONAL INFORMATION:FOR EARTHING					
13	6302030094	BENTONITE,25KG/BAG,MCGEL	KG	31 Jul 2026	125.00	700.00	87,500.00
Long Description:		BENTONITE,FORM OF SUPPLY:25 KG PER BAG,ADDITIONAL INFORMATION:MCGEL					
14	5808010040	ROD,EARTHING,CU,1INXLG8FT	NOS	31 Jul 2026	1.00	35,000.00	35,000.00
Long Description:		EARTHING ROD,MATERIAL:COPPER,SIZE:1 IN X LG 8 FT					
15	6101140022	CLAMP,CU,F/EARTHING	NOS	31 Jul 2026	2.00	3,000.00	6,000.00
Long Description:		CLAMP,MATERIAL:COPPER,ADDITIONAL INFORMATION:FOR EARTHING					
16	6101120518	RCCB,2P,63A,30MA,411863,LEGRAND	NOS	31 Jul 2026	1.00	10,000.00	10,000.00
Long Description:		RESIDUAL CURRENT CIRCUIT BREAKER (RCCB),COMPONENT MAKE:LEGRAND,COMPONENT PART NUMBER:411863,NUMBER OF POLE:2,CURRENT RATING:63 A,RATED SENSITIVITY:30 MA,SERIES:DX3					
17	6102990252	PROTECTOR,SURGE,H003256,SCHNEIDER	NOS	31 Jul 2026	1.00	15,000.00	15,000.00
Long Description:		SURGE PROTECTOR,COMPONENT MAKE:SCHNEIDER,COMPONENT PART NUMBER:H003256,MODEL NUMBER:EZ9L33620,NUMBER OF POLE:2 (1P + N),BREAKING CAPACITY:20 KA,VOLTAGE RATING:230 V,MAXIMUM BREAKING CAPACITY:40 KA,MOUNTING TYPE:DIN RAIL,COLOR:GREEN AND RED (FLAG)					
18	6101330121	CABLE,CU,1C,4SQMM,BLACK,POLYCAB	MTR	31 Jul 2026	20.00	640.00	12,800.00
Long Description:		NON-SHEATHED CABLE,MATERIAL:COPPER,SIZE:4 SQ MM,COMPONENT MAKE:POLYCAB,STANDARD:60227 IEC02,NUMBER OF CORE:1,VOLTAGE RATING:450/750 V,COLOUR:BLACK,INSULATION MATERIAL:PVC					
19	6101330119	CABLE,CU,1C,2.5SQMM,RED,POLYCAB	ROLL	31 Jul 2026	1.00	52,000.00	52,000.00
Long Description:		NON-SHEATHED CABLE,MATERIAL:COPPER,SIZE:2.5 SQ MM,COMPONENT MAKE:POLYCAB,STANDARD:60227 IEC02,NUMBER OF CORE:1,VOLTAGE RATING:450/750 V,COLOUR:RED,INSULATION MATERIAL:PVC					
20	6101330074	CABLE,EARTHING,4MM,1C	ROLL	31 Jul 2026	1.00	100,000.00	100,000.00
Long Description:		EARTHING CABLE,SIZE:4 MM,NUMBER OF CORE:1,CONDUCTOR MATERIAL:COPPER,INSULATION MATERIAL:PVC					
21	6101330406	CABLE,EARTHING,CU,10MM,PVC,1C,600/1000V	ROLL	31 Jul 2026	1.00	247,000.00	247,000.00
Long Description:		EARTHING CABLE,MATERIAL:COPPER,SIZE:10 MM,INSULATION MATERIAL:PVC,CURRENT RATING:74 A,NUMBER OF CORE:1,VOLTAGE RATING:600/1000 V,FORM OF SUPPLY:100 M PER BUNDLE					
22	6101990729	PROTECTOR,VOLTAGE,JZV-2,POSMITH	NOS	31 Jul 2026	1.00	14,500.00	14,500.00
Long Description:		VOLTAGE PROTECTOR,SIZE:81 X 35 X 60 MM,COMPONENT MAKE:POSMITH,COMPONENT PART NUMBER:JZV-2,TYPE:UNDER OVER,OPERATING VOLTAGE RATING:220 VAC,FREQUENCY:50 HZ,NUMBER OF PHASE:1,OPERATING CURRENT RANGE:1 TO 63 A (ADJUSTABLE),NUMBER OF POLE:1P+N,POWER DELAY AFTER POWER OFF:30 SEC,MOUNTING TYPE:DIN RAIL,RAIL SIZE:35 MM,INGRESS PROTECTION:IP 20,WORKING TEMPERATURE RANGE:-5 TO +45 DEG C,RELATIVE HUMIDITY RANGE:45 TO 90 PCT (AT 40 DEG C)					
23	6102330257	AVR,5KVA,1PH,140TO250VAC,50/60HZ	NOS	31 Jul 2026	1.00	195,000.00	195,000.00
Long Description:		AUTOMATIC VOLTAGE REGULATOR (AVR),TYPE:SERVO MOTOR CONTROLLED STABILIZER,CAPACITY:5 KVA,NUMBER OF PHASE:1,INPUT VOLTAGE RANGE:140 TO 250 VAC,OUTPUT VOLTAGE RANGE:220/110 VAC,FREQUENCY:50/60 HZ,WAVEFORM DISTORTION:NEGLIGIBLE,OUTPUT POWER:100 PCT,WINDING MATERIAL:PURE COPPER,CONNECTION TYPE:TERMINAL BLOCK,ENCLOSURE BODY MATERIAL:METAL,MOUNTING TYPE:FLOOR-STANDING/WALL,OPERATING TEMPERATURE RANGE:-5 TO +40 DEG C,HUMIDITY:LESS THAN OR EQUAL TO 90 PCT (RH)					

KFZE/BISNL/201384/6-2026/GC000047

Transportation Charges	500,000.00
Sub Total Purchase Order Value	3,685,400.00
Total Purchase Order Value	3,685,400.00

Total Purchase Order Value (In Words):(NGN) Three Million Six Hundred Eighty Five Thousand Four Hundred Point Zero Only.

Item Number 1, Suppier shall supply DISTRIBUTION UNIT,POWER,AP9559,APC
Transportation Charges includes Logistics, Community and Youth Settlement charges.

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KFZE/BISNL/201384/6-2026/GC000047

Payment Terms	
1	100% of Invoice amount shall be paid within 30 Days after delivery of goods and receipt of below documents whichever is later
	(1). Order Acknowledgement
	(2). Final/Commercial Invoice -01

List of Attached Documents
Section I - Annexure
Section II - General Terms and Conditions

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SECTION I - ANNEXURE

1. **Details for submission of invoice**

   Invoices shall be addressed and submitted to:

   KAILAS FZE
   At Ibom Energy Free Trade Zone Sub-zone within Liberty Oil & Gas Free At Eastern Obolo, Akwa Ibom Akwa Ibom NIGERIA
   Email: info@kailasindustriesfze.com

2. **Details for submission of notice**

   a) Notices to Company shall be addressed and submitted to:

   KAILAS FZE
   At Ibom Energy Free Trade Zone Sub-zone within Liberty Oil & Gas Free At Eastern Obolo, Akwa Ibom Akwa Ibom NIGERIA
   Email: info@kailasindustriesfze.com

   b) Notices to Supplier shall be addressed and submitted to:

   BIDCOM INTEGRATED PROJECTS LIMITED
   KM 5, REFINERY ROAD, EKPAN, WARRI, DELTA, NIGERIA
   Phone: +234-8088558214
   Email: info.bidcomintegratedprojects@gmail.com



General Terms and Conditions

(Section II)

1. Definitions

a. **"Contract Price"** means the fixed and final sum payable to the Seller by the Buyer for the Works, as specified in the Purchase Order.
b. **"Contract"** means the Purchase Order issued by the Buyer based on the Schedule of Requirements, technical specifications, plans, drawings and other documents in the invitation issued by the Buyer, and the quotation submitted by the Seller.
c. **"Seller"** means the individual, firm, company or any other entity performing the Works, as named in the Purchase Order.
d. **"Buyer"** means the customer, which is purchasing the Works, as named in the Purchase Order.
e. **"Goods"** mean the equipment, machinery, items, commodities and/or other materials that the Seller is required to supply to the Buyer under the Contract.
f. **"Lien"** means a charge or an encumbrance, created for the benefit of a person or an entity, upon the property or title of goods, inventories, or other tangible assets, which is created to secure such beneficiary creditor's right to obtain repayment of the debt from the debtor or for such beneficiary contracting party's right to enforce contractual obligations of the other contracting party.
g. **"Purchase Order" or "PO"** means the purchase order issued by Buyer to Seller for Works.
h. **"Schedule of Requirements"** mean the specifications, conditions, provisions, parameters and other requirements which the Seller is required to fully comply with while performing the Works as are provided in the Purchase Order.
i. **"Services"** mean the activities of professional, technical, advisory, installation, maintenance or other types required to be performed by Seller under the Contract for the Buyer, if applicable.
j. **"Tangible Goods and Materials"** shall have the meaning ascribed to such term in clause 14 hereunder
k. **"Works"** mean the Goods required to be supplied and/or Services required to be performed by the Seller in accordance with the provisions of the Contract, including but not limited to Seller's Obligations as stated in clause 3 hereunder.

2. Buyer's non-exclusive obligation to procure Goods, Services and Works

This Contract is non-exclusive and carries no requirements for Buyer to purchase any minimum quantities. Buyer may procure same or similar goods, services and works from other Sellers, vendors or suppliers as well.

3. Seller's Obligations

The Works performed under this Contract shall conform to all the standards and requirements as provided in the Schedule of Requirements, technical specifications, plans, drawings, terms of reference or other documents forming part of the Contract.

4. Contract Price

The Contract Price includes all applicable taxes. The Seller shall bear all applicable taxes, duties, levies and charges of a similar nature in relation to the Goods, Services and Works and undertakes to fully indemnify the Buyer against these liabilities. The Contract Price is fixed until completion, covering all obligations and defect remedies, without escalation for any reason whatsoever, except for any changes effected in accordance with change orders provisions as stated in clause 19 hereunder.

5. Tax and Duties

The Seller shall bear all applicable taxes, duties, levies and charges of a similar nature in relation to the Works and undertakes to fully indemnify the Buyer against any breach of Seller's tax obligations.

6. Payments and Invoicing

6.1 If so, specified in the Purchase Order, the Buyer shall provide an advance payment for mobilization, subject to receiving an advance payment bank guarantee. This advance shall be repaid by the Seller through proportionate deductions from subsequent payments to be made by Buyer to Seller, if so specified in the PO.
6.2 The Seller shall be paid in instalments upon completing specific milestones and/or progression benchmarks, and after submitting invoices with requisite supporting documents in accordance with the provisions of the PO.
6.3 The Buyer shall be required to provide its objections, disputes, comments on adjustments against amounts payable with respect to invoices submitted by the Seller within 30 days of receiving the relevant invoice.
6.4 Payments shall be made to the Seller's nominated bank account within specified timeframes, subject to conditions precedent as further elaborated in PO.
6.5 The Seller shall confirm the receipt of the payment of the final invoice within 2 days of receipt of payment. Upon payment of the undisputed amount against the final invoice, the Buyer shall not be any more liable to the Seller.

7. Bank Guarantees

The Seller shall provide and maintain performance bank guarantee, advance payment, and warranty bank guarantees from an approved bank and in a form acceptable to the Buyer for such amounts and periods as are specified in the PO. Failure to deliver these required bank guarantees shall result in no payments being due to the Seller until the required bank guarantees have been provided.

8. Seller's obligations related to Works

a. **Adherence to Schedules**: Seller shall follow delivery and completion schedules as provided in the Purchase Order.
b. **Compliance**: The Works shall comply with the requirements as specified in clause 3. hereinabove and also all applicable statutory and legal requirements.

c. **General Warranties**: Seller guarantees that it shall comply with all applicable laws, industry best practices, and Buyer's requirements.
d. **Experience and Expertise**: Seller warrants that it has the requisite qualifications, experience and expertise to perform the Works.
e. **Standards and Quality**: Goods and Works shall be new, fit for purpose, and meet the applicable industry standards.
f. **Activity Methods**: The Seller shall submit and obtain the Buyer's approval for methods and deliver and/or perform Works as per the schedule. The title to the Goods shall pass to the Buyer upon successful delivery of the Goods at the delivery point as specified in the PO and with respect to the Works and Services upon successful completion and acceptance by the Buyer of respective Works and Services.
g. **Documentation**: Errors in documentation shall be corrected at Seller's sole cost.
h. **Insurance**: The Seller and sub-seller shall maintain all applicable and adequate insurance coverage, provide the copy of the insurance certificates to the Buyer, and indemnify the Buyer against any liabilities arising from breaches by the Seller to take up appropriate and adequate insurance coverage.
i. **Licenses and Permits**: Seller shall procure the necessary licenses and permits required under law to perform the Works. Seller shall fully indemnify and hold harmless the Buyer against losses from Seller's non-compliance with these provisions.

9. Delay Damages

If the Seller fails to satisfactorily complete performance of the Works on schedule, the Seller shall pay delay damages at the rate and subject to capping limits as provided in the PO. These delay damages are deemed fair and reasonable, not punitive, representing the Buyer's estimated losses.

10. Defects Liability and Warranties

The Seller shall remedy all defects in the Works during the period till end of the defect's liability period at its sole cost. If defects are not remedied in a timely manner, then the Buyer shall be entitled to remedy the defects on its own or through third parties at the Seller's sole expense. The defects liability period may be extended if the Works are unusable due to defects. The defects liability period shall be for a period as provided in the PO commencing from the later of: (a) the date of delivery of the last batch of Goods supplied under the Contract; or (b) The satisfactory acceptance of completion of Works by the Buyer in writing.

11. Testing

The Seller shall provide all necessary resources for pre-delivery tests and submit certified reports. The Buyer may vary test details or request additional tests. The Seller shall bear all associated costs relating to testing unless specified otherwise in the PO. The Buyer shall endorse the test certificate upon successful completion thereof.

12. Indemnities

The Seller shall indemnify and hold harmless the Buyer from all third-party claims and liabilities arising under or in relation to the Contract for any fault of or breaches by Seller. If the Seller fails to do so, the Buyer shall defend itself, and the Seller shall be liable for all related costs. The Seller shall consult the Buyer before settling or proceeding to trial.

13. Limitation of Liability

The Seller's total liability to the Buyer for all claims and losses under the Contract is capped at 100% of the Contract Price, except for fraud, gross negligence, death, personal injury, third-party claims, intellectual property rights infringement, insurance recoveries, defect remedies, and legal breaches, for which the Seller's liability shall be without any limitation and capping. The Buyer's liability to the Seller is capped at 100% of the Contract Price. Neither party is liable for indirect or consequential losses.

14. Liens

Seller warrants as follows: a) that the Seller holds clear and perfect title to the all the materials, inventories, Goods and all other tangible items comprised in the Works and any part thereof (to be jointly and severally referred to as "Tangible Goods and Materials" in this context); b) the Seller shall not create any Liens for its own benefit or permit any third party to create any Liens for such third party's benefit on such Tangible Goods and Materials; c) the title and property in such Tangible Goods and Materials passed by Seller to Buyer shall always be fully clear and perfect and shall be free from any Liens or other types of charges or encumbrances in favour of either the Seller or any third party.

15. Assignment and Subcontracting

The Seller cannot assign or subcontract the supply and/or performance of Works without the Buyer's prior written consent, except for listed sub-sellers which have been duly pre-approved in writing by the Buyer. Buyer's consent does not limit the Seller's responsibilities, and Seller shall remain fully liable for sub-sellers' actions. sub-seller shall allow the Seller's rights to be assigned to the Buyer or a nominee after the defects liability period or termination of the Contract otherwise for any reason whatsoever.

16. Anti-bribery

Seller represents and warrants that, in connection with this Contract and its performance, it has complied with, shall comply with, and act in accordance with all applicable laws, rules, regulations relating to anti-bribery and anti-money laundering in Nigeria or any other jurisdictions applicable to the performance of this Contract. The Seller shall prevent all direct and/or indirect payments of commissions, gifts or any other form of remuneration or benefit to any officer, director, officer, employee, representative, or agent of the Buyer, and fully comply with other written commitments it has made to the Buyer in relation to the Contract. The Buyer reserves the right to suspend or terminate its engagement with the Seller, and the Seller shall be required to indemnify and hold harmless the Buyer for any for any losses, damages, costs, or expenses incurred by the Buyer as consequence of such breach of this clause 16. The parties agree that the Buyer, at its sole discretion, shall have the right to reduce the aggregate of the Contract Price and other amounts, including reimbursable

expenses if any, payable by the Buyer to the Seller under the Contract up to 10% (ten percent) of the Contract Price as liquidated damages in the event of breach of this clause 16. These liquidated damages are intended solely as a reasonable estimate of losses incurred and not as a penalty.

17. Force Majeure

Neither party shall be liable for any failure or delay in performance under this Contract due to circumstances beyond their reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, government actions, labor disputes, or other events that are unforeseeable and unavoidable. If such circumstances occur, the affected party shall notify the other party as soon as possible and take all reasonable steps to mitigate the impact. The performance of obligations shall be suspended for the duration of the force majeure event. If force majeure persists for 180 days in aggregate, then either party may terminate the Contract.

18. Intellectual Property Rights

Each party shall retain ownership of its respective intellectual property rights created independently of the Contract. The Seller grants the Buyer a non-exclusive, perpetual, royalty-free license to use, modify, and distribute the Seller's documents for all project-related purposes. This license extends to sub-sellers' documents and allows sub-licensing. The license remains valid even after the Contract completion or termination.

19. Change Orders

19.1 **Buyer's right to issue change orders**: The Buyer may initiate variations through issuance of one or more change orders, at its sole discretion, anytime before the final Goods and/or Services delivery and/or full Works completion certificate has been issued by Buyer to Seller in writing. The Seller shall comply with such instruction from Buyer unless it notifies the Buyer that the required Goods and/or Services cannot be provided due to impossibility to do so. The Buyer may then confirm, cancel, or vary the instructions.

19.2 **Change Order Procedure**: If the Buyer requests in writing for a written proposal for change order from the Seller, the Seller shall respond with a detailed written proposal with the requisite information and supporting documents within a period of 15 days, or earlier as may be reasonably required by Buyer, from the date of issuance of the written request by the Buyer, including any changes proposed in the delivery schedule and/or Contract Price. The Seller shall not delay any part of the Works while awaiting a response but should not execute any works against the proposed change order unless the same has been approved in writing by Buyer. It shall be at the sole discretion of the Buyer to approve, disapprove or seek modifications in a change order as proposed by Seller.

20. Confidentiality/No Publicity

Neither party shall disclose or publish any confidential information disclosed by or in relation to the other party during the Contract to any third party without the prior written consent of the other party. The confidential information shall be safeguarded with reasonable care, limited to authorized personnel/employees and/or duly authorized agents of the respective parties, and used only for the performance of the Contract. The Seller shall be required to obtain a duly signed non-disclosure agreement from its personnel/employees and/ or sellers to protect the confidential information of the Buyer disclosed by or in relation to the Contract before disclosure in accordance with the confidential requirements herein stated in this Clause 20. Information is not confidential if publicly known, lawfully received from a third party, or independently developed. This obligation of both parties not to disclose or publish the confidential information shall continue to have effect after the performance or termination of the Contract.

21. Suspension

a. Suspension for Cause: Buyer, at its sole discretion, can ask for suspension of performance by the Seller of the whole or any part of the Works with immediate effect, by issuing a written notice, if there are any grounds for Buyer to terminate the Contract, as are elaborated in clause 22 hereunder, except for termination at Buyer's convenience. Such suspension shall be for such period as may be specified by the Buyer in the notice of termination, which could further be extended by the Buyer from time to time by issuing further written notices. In such a case the Seller shall not be entitled to receive any compensation or change orders for such suspension of Works or any part thereof as enforced by the Buyer.

b. Suspension for Buyer's Convenience: Buyer, at its sole discretion, can ask for suspension of performance by the Seller of the whole or any part of the Works, by issuing a written notice at least seven days in advance, on the basis of Buyer's convenience. However, in such a case the Seller shall be entitled to extension in the delivery schedule to the extent of such period of suspension, subject to mitigation of the delay by Seller on a best effort basis. The Seller shall not be entitled to ask for any increase in Contract Price due to such suspension

c. Resumption of Work: Buyer, at its sole discretion, can withdraw the suspension at any time by issuing a written notice to the Seller. Whereupon the Seller is obligated to resume performance of such suspended Works or any part thereof, as applicable, forthwith in an expedited manner.

22. Termination

The Buyer may terminate the Contract for abandonment, failure to perform, insolvency, invalid bank guarantees, or unremedied breaches attributable to the Seller. Upon termination, the Seller shall deliver required Goods and materials and would be paid for such Works which has been completed in accordance with the Contract and to the satisfaction of the Buyer. In case the Seller fails to satisfactorily complete any part of the Works, then the Buyer may either on its own or through third parties do the needful to complete such part of the Works and recover related expenses and losses incurred by the Buyer from the Seller. Termination does not affect the rights and remedies of the parties arising prior to termination unless the Contract is being terminated due to Seller's breach of its obligations under the Contract. The Buyer may also terminate the Contract for its convenience with at least 30 days written notice. The Seller may terminate

if the aggregate of unpaid undisputed overdue amounts exceeds 20% of the Contract Price and remains unpaid after written notice for a period of more than 30 days. The amounts payable on termination shall be determined by the Buyer in consultation with the Seller. Any expenses, losses or costs incurred by Buyer resulting from such termination shall be recoverable from the Seller. The final amount payable upon termination shall be determined by Buyer.

23. Governing Law and Dispute Resolution

The Contract is governed by the laws of the Federal Republic of Nigeria. Disputes unresolved through discussions between the senior management of the respective parties within 30 days of receipt of the notice of the dispute shall be solely and finally settled by arbitration at the Lagos Multi-door Court House (LMDC) under the Nigerian Arbitration and Mediation Act 2023. Each Party shall select an arbitrator, and they jointly select a third arbitrator. If appointments fail, LMDC shall appoint the arbitrators. Arbitration shall be held in Lagos, Nigeria, conducted in English, and decisions shall be final and binding on the parties. Arbitration costs shall be shared equally, and arbitral proceedings shall be confidential.

24. Miscellaneous

a. **Entire Contract**

This Contract is the complete understanding between the parties, superseding all prior discussions. Any changes shall be mutually agreed upon in writing. In the event of any inconsistencies between the different parts of the Contract including its Annexures, the Buyer shall be entitled to resolve such inconsistencies and ambiguities through appropriate determination.

b. **Packing**

The Seller shall provide such packing of Goods as necessary to prevent damage or deterioration during transit to their final destination. The packing shall be sufficient to withstand rough handling and exposure to extreme temperatures, salt and precipitation during transit, and open storage.

c. **Delivery**

Delivery of Goods shall be made by the Seller in accordance with the terms specified in the Schedule of Requirements.

The terms "EXW," "CIF," "CIP," and other trade terms used to describe the obligations of the parties shall have the meanings assigned to them by the current edition of INCOTERMS published by the International Chamber of Commerce, Paris.

d. **Transportation**

Where the Seller is required under the Contract to transport Goods to a specified place of destination, transport, including insurance and storage, shall be arranged by the Seller, and related costs shall be included in the Contract Price.

e. **Community related issues**

Seller shall be solely responsible for conducting and managing all activities related to community relationship management and execution of community beneficial programmes. The cost of community relationship management and community beneficial programmes shall be solely to the account of the Seller and is deemed to be included in the Contract Price.